

The U.P. Basic Education (Teachers) Service Rules, 1981

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State of Uttar Pradesh - Act

The U.P. Basic Education (Teachers) Service Rules, 1981

UTTAR PRADESH

India

The U.P. Basic Education (Teachers) Service Rules, 1981

Rule THE-U-P-BASIC-EDUCATION-TEACHERS-SERVICE-RULES-1981 of 1981

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The U.P. Basic Education (Teachers) Service Rules, 1981

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Last Updated 6th June, 2019

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Basic Education (Teachers) Service Rules, 1981.

(2)

They shall come into force at once.

2.

[Definitions.

[Substituted by Notification No. 407/LXXIX-5-2018/write-105-2014, dated 15.3.2018 (w.e.f. 3.1.1981).]

(1)

In these rules, unless the context otherwise requires,—

(a)

"Act" means the Uttar Pradesh Basic Education Act, 1972 (U.P. Act 34 of 1972);

(b)

"Appointing Authority" in relation to teachers referred to in Rule 3 means the District Basic Education Officer;

(c)

"Basic School" means a school where instructions from Classes I to VIII are imparted;

(d)

"Board" means the Uttar Pradesh Board of Basic Education constituted under Section 3 of the Act;

(e)

"Chairman" means the Chairman of the Uttar Pradesh Board of Basic Education;

(f)

"District Basic Education Officer" means the officer appointed by the Government as such for a particular district;

(g)

"Government" means the Government of Uttar Pradesh;

(h)

"Junior Basic School" means a basic school where instructions from Classes I to V are imparted;

(i)

"Local Area" means the area over which a local body exercises jurisdiction;

(j)

"Nursery School" means a school in which children ordinarily of the age up to six years are taught in classes lower than Class I;

(k)

"Rural Local Area" means the area over which a (Zila Panchayat) exercises jurisdiction;

(l)

"Selection Committee" means the Selection Committee constituted under Rule 16;

(m)

"Senior Basic School" means a Basic School where instructions from Classes VI to VIII are imparted;

(n)

"Service" means the Uttar Pradesh Basic Education Teachers' Service;

(o)

"Teacher" means a person employed for imparting instructions in Nursery Schools, Junior Basic Schools, or Senior Basic Schools; ip) "Training Institution" means an institution imparting training for recognised certificate courses of teaching;

(q)

"Training" means a training course recognised by the Government or any training qualification notified by National Council for Teacher Education (NCTE) from time to time to teach children from Class I to VIII for which graduates are eligible for admission;

(r)

"Urban Local Area" means the area over which a Nagar Nigam, Nagar Panchayat, Town Area Committee or Notified Area Committee exercise jurisdiction;

(s)

"Teacher Eligibility Test" means the Teacher Eligibility Test conducted by the Government or by the Government of India;

(t)

"Qualifying marks in Teacher Eligibility Test" Qualifying marks in Teacher Eligibility Test will be such as may be prescribed from time to time by the National Council for Teacher Education, New Delhi;

(u)

"Trainee teacher" means a candidate who has passed B.Ed./B.Ed (Special Education)/D.Ed. (Special Education) and has also passed the teacher eligibility test and has been selected for eventual appointment as assistant teacher in Junior Basic School after successful completion of six months special training programme in elementary education recognised by National Council for Teacher Education (NCTE);

(v)

"Shiksha Mitra" means a person working as such in junior basic schools run by Basic Shiksha Parishad under the Government Orders prior to the commencement of Uttar Pradesh Right of Children to Free and Compulsory Education Rules, 2011;

or

A person who has been a Shiksha Mitra and appointed as an Assistant Teacher in Junior Basic Schools run by Basic Shiksha Parishad and reverted to work as Shiksha Mitra in pursuance of the judgment of the Apex Court in SLP No. 32599/2015 State of U.P. and others v. Anand Kumar Yadav and others.

(w)

"Assistant Teacher Recruitment Examination" means a written examination conducted by the Government for recruitment of a person in junior basic schools run by Basic Shiksha Parishad.

(x)

"Qualifying Marks of Assistant Teacher Recruitment Examination" means such minimum marks as may be determined from time to time by the Government.

(y)

"Guidelines of Assistant Teacher Recruitment Examination" means such guidelines as may be determined from time to time by the Government.

(2)

The words and expressions not expressly defined in these rules but defined in the Act shall have the same meaning as assigned to them in the Act.]

3.

Extent of application.

- These rules shall apply to :

(i)

All teachers of local bodies transferred to the Board under Section 9 of the Act; and

(ii)

all teachers employed for the Basic and Nursery Schools established by the Board.

Part II ? Cadre And Strength

4.

Strength of the Service.

(1)

There shall be separate cadres of service under these rules for each local area.

(2)

The strength of the cadre of the teaching staff pertaining to a local area and the number of the posts in the cadre shall be such as may be determined by the Board from time to time with the previous approval of the State Government :

Provided that the appointing authority may leave unfilled or the Board may hold in abeyance and post or class of posts without thereby entitling any person to compensation :

Provided further that the Board may, with the previous approval of the State Government, create from time to time such number of temporary posts as it may deem fit.

Part III ? Recruitment

5.

Sources of recruitment.

- The mode of recruitment to the various categories of posts mentioned below shall be as follows :

(a)

(i) Mistresses of Nursery Schools

By direct recruitment as provided in Rules 14 and 15;

(ii) Assistant Masters and Assistant Mistresses of Junior Basic Schools

By direct recruitment as provided in Rules 14 and 15;

(b)

(i) Headmistresses of Nursery Schools

By promotion as provided in Rule 18;

(ii) Head Masters and Head Mistresses of Junior Basic Schools

By promotion as provided in Rule 18;

(iii) Assistant Masters of Senior Basic Schools

By promotion as provided in Rule 18;

(iv) Assistant Mistresses of Senior Basic Schools

By promotion as provided in Rule 18;

(v) Head Masters of Senior Basic Schools

By promotion as provided in Rule 18;

(vi) Head Mistresses of Senior Basic Schools

By promotion as provided in Rule 18;

Provided that if suitable candidates are not available for promotion to the posts mentioned at (iii) and (iv) above, appointment may be made by direct recruitment in the manner laid down in Rule 15.

Part IV ? Qualification

6.

[Age.

[Substituted by Notification No. 2976/LXXIX-5-06-127-97, dated 25.11.2006, published in the U.P. Gazette, Extraordinary, Part IV, Section (Ka), dated 25.11.2006.]

- A candidate for recruitment to any post referred to in clause (a) or proviso to clause (b) of Rule 5, must have attained the age of eighteen years and must not have attained the age of more than thirty-five years on the first day of July following the year in which the vacancy is notified :

Provided that the upper age limit shall, in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes, Backward Classes and dependents of freedom fighters be greater by five years or as provided by the State Government from time to time :

Provided further that the upper age limit shall, in the case of a candidate, who is ex-serviceman, be greater by three years or as provided by the State Government from time to time :

Provided also that where after successful completion of a course of training prescribed for teachers of basic schools, a candidate could not get appointment due to non-availability of vacancy in the district, the period he has remained unappointed shall not be counted for the calculation of his age if he has not attained the age of more than fifty years on the date of appointment :

Provided also that no upper age limit shall apply in case of B.Ed./L.T./ B.P.Ed./C.P.Ed. or D.P.Ed. trained candidates who have completed special B.T.C. Training Course in the year 1999 :

Provided also that in case of candidates having proficiency in Urdu and having completed two years B.T.C. Urdu special B.T.C. training course or completed special BTC training course the upper age limit shall be such as may be determined from time to time by the State Government.]

7.

Nationality.

- A candidate for recruitment to a post mentioned in Rule 5 must be :

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before January 1, 1962 with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka, and East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly) Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of

eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category (c), no certificate of eligibility will be issued for a period of more than one year and such candidate may be retained in service after a period of one year only if he has acquired Indian citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused may be admitted to interview and he may also be provisionally appointed subject to the necessary certificate being issued in his favour.

8.

[Academic Qualifications.

[Substituted by Notification No. C.M. 10/ 68-5-2019-Writ-105-2014, dated 24.1.2019.]

- The essential qualifications of candidates for appointment to a post referred to in clause (a) of Rule 5 shall be as shown below against each -

Post

Academic Qualifications

Omitted

[Assistant Master of Junior Basic Schools.

[Substituted by Notification No. 189/68-5-2019-Writ-105-2014, dated 7.3.2019.]

(ii)(a) Bachelors degree from a University

established by law in India or a degree recognised by the Government equivalent thereto together with any other training course recognised by the Government as equivalent thereto together with the training qualification consisting of a Basic Teacher's Certificate (BTC), two year BTC, (Urdu), Vishist BTC. Two year Diploma in Education (Special Education) approved by Rehabilitation council of India or four year Degree in Elementary Education (B.El.Ed.), two year Diploma in Elementary Education (by whatever name known) in accordance with the National Council of Teacher Education (Recognition, Norms and Procedure), Regulations, 2002, or any training qualifications to be added by National Council of Teacher Education for the recruitment of teachers in primary education, and teacher eligibility test passed conducted by the Government or by the Government of India.(aa) Graduation with at least fifty per cent marks and Bachelor of Education (B.Ed.), provided that the person so appointed as a teacher shall mandatorily undergo a six month Bridge Course in Elementary Education recognised by the NCTE, within two years of such appointment as primary teacher or any training qualifications to be added by National Council of Teacher Education for the recruitment of teachers in primary education, and teacher eligibility test passed conducted by the Government or by the Government India]

(b) a Trainee Teacher who has completed successfully six months special training programme in elementary education recognised by NCTE.

(c) a shikshamitra who possessed bachelors degree from a University established by law in India or a degree recognised by the Government equivalent thereto and has

completed successfully two year distant learning B.T.C. course or Basic Teacher's Certificate (B.T.C.), Basic Teacher's Certificate (B.T.C.) (Urdu) or Vishisht B.T.C. conducted by the State Council of Educational Research and Training (SCERT) and passed the Teacher Eligibility Test conducted by the Government or by the Government of India and passed Assistant Teacher recruitment Examination conducted by the Government.

(2) The essential qualifications of candidates for appointment to a post referred to in sub-clauses (iii) and (iv) of clause (b) of Rule 5 or under the proviso to clause (b) of Rule 5 for teaching Science, Mathematics, Craft or any language other than Hindi and Urdu shall be as follows -

(i) A Bachelors Degree from a University established by law in India or a Degree recognised by the Government equivalent thereto with Science, Mathematics, Craft or particular language, as the case may be, as one of the subject, and

(ii) Training qualification consisting of Basic Teacher's Certificate, Certificate of Teaching or any other Training Course recognised by the Government as equivalent thereto or Bachelor of Education (B.Ed.) recognised by the Government or B.Ed. (Special Education) a course recognised by Rehabilitation Council of India (RCI) and passed the Teacher Eligibility Test conducted by the Government or by the Government of India.

(3) The minimum experience of candidates for promotion to a post referred to in clause (b) of Rule 5 shall be as shown below against each -

Post

Experience

(i) Omitted

(ii) Headmaster of Junior Basic Schools and

Assistant Master of Senior Basic School

At least five years teaching experience as permanent Assistant Master of Junior Basic School;

(iii) Headmaster of Senior Basic School

At least three years experience as permanent Headmaster of Junior Basic School or Assistant Master of Senior Basic School, as the case may be:

Provided that if sufficient number of suitable or eligible candidates are not available for promotion to the posts mentioned at serial numbers (ii) or (iii), the field of eligibility may be extended by the Board by giving relaxation in the period of experience.

(4) The essential qualification of candidates for appointment to the posts referred to in clause (a) and sub-clauses (v) and (vi) of clause (b) of Rule 5 for teaching Urdu Language shall be as follows -

(i) A Bachelors Degree from a University established by law in India or a Degree recognised by the Government as equivalent thereto with Urdu as one of the

subjects.

Note.- A candidate who does not possess the aforesaid qualification in Urdu, shall be eligible for appointment, if the candidate possesses a Master's Degree in Urdu.

(ii) Training qualification recognised by the Government as equivalent thereto or Basic Teacher's Certificate (BTC), two years BTC (Urdu) and teacher eligibility test passed, conducted by the Government or by the Government of India.

(5) The essential qualifications of candidates having proficiency in Urdu for appointment to the posts referred to in sub-clause (ii) of clause (a) of Rule 5 for teaching in Urdu medium shall be as follows -

(i) A Bachelors Degree from a University established by law in India or a Degree recognised by the Government as equivalent thereto. The qualifications for proficiency in Urdu will be such as may be prescribed from time to time by the Government and

(ii)(a) Training qualification of two years B.T.C. Urdu special training course and teacher eligibility test passed, conducted by the Government of Uttar Pradesh or by the Government of India.

(b) Diploma in Teaching from Aligarh Muslim University (for teaching Urdu) and teacher eligibility test conducted by the Government or by the Government of India.
or

(c) Mualim-e-Urdu Degree obtained before August 11, 1997 (for teaching Urdu) and Teacher Eligibility Test passed conducted by the Government or by the Government of India.]

9.

[Reservations.

[Substituted by Notification No. 2729/XV-5-97/127/97, dated 6.8.1997, published in the U.P. Gazette, Extraordinary, dated 12.1.1998.]

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes, Backward Classes, dependants of freedom fighters, ex-servicemen and other categories shall be in accordance with the Uttar Pradesh Act and the orders of the State Government in force at the time of recruitment.]

10.

Relaxation for ex-servicemen and certain other categories.

- Relaxation, if any, from the maximum age-limit, educational qualifications or/and any procedural requirements of recruitment in favour of the ex-servicemen, disabled military personnel, dependants of military personnel dying in action, dependants of board's servants dying in harness and sportsmen shall be in accordance with the general rules or orders of the Government in this behalf in force at the time of recruitment.

11.

[Character.

[Substituted by Notification No. 1962/XV-5-93-73-93, dated 28.6.1993, published in the U.P. Gazette, dated 21.8.1993.]

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in the service. The appointing authority shall satisfy itself on this point.

Note. - Persons dismissed by the Union Government or by a State Government or by a local authority or a Corporation or body owned or controlled by the Union Government or a State Government shall be ineligible for employment. Persons convicted of an offence involving moral turpitude shall also be ineligible.]

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a person already having a wife living, shall not be eligible for appointment to the service :

Provided that the Board may, if satisfied that there exists special ground for doing so, exempt any person from the operation of this rule.

13.

[Physical fitness.

[Substituted by Notification No. 1962/XV-5-93-73-93, dated 28.6.1993, published in the U.P. Gazette, dated 21.8.1993.]

(1)

No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties.

(2)

Before a candidate is finally approved for appointment by direct recruitment he shall be required to produce a medical certificate of fitness of a Chief Medical Officer.]

14.

[Procedure of Selection.

[Substituted by Notification No. C.M. 10/ 68-5-2019-Writ-105-2014, dated 24.1.2019.]

(1)

Determination of vacancies. - In respect of appointment, by direct recruitment to the post of Assistant Master of Junior Basic Schools under clause (a) of Rule 5, the appointing authority shall determine the number of vacancies as also the number vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes, Backward Classes and other categories under Rule 9 and forward to the Secretary, Uttar Pradesh Basic Education Board, Prayagraj. Information of compiled vacancies as per reservation shall be provided by the Secretary, Uttar Pradesh Basic Education Board, Prayagraj to the Examination Body. For the notified vacancies an Assistant Teacher Recruitment Examination shall be conducted by the Examination Body authorised as such by the Government and result, according to reservation, shall be provided to Secretary, Uttar Pradesh Basic Education Board, Prayagraj.

Thereafter, an advertisement for recruitment will be published in at least two leading daily newspapers having adequate circulation in the State by the Secretary, Uttar Pradesh Basic Education Board, Prayagraj inviting online applications from candidates possessing prescribed educational and trainings qualification and passed teacher eligibility test, conducted by the Government or by the Government of India and passed Assistant Teacher Recruitment Examination conducted by the Government, in which cadre wise district option will be filled by the candidates.

(2)

The Secretary, Uttar Pradesh Basic Education Board, Prayagraj shall scrutinise the applications received in pursuance of the advertisement under clause (a) sub-rule (1) of Rule 14 and prepare a list of such persons who possess the prescribed academic qualifications and passed Assistant Teacher Recruitment Examination and be eligible for appointment.

(3)

The name of candidates in the list prepared under sub-rule (2) in accordance with clause (a) of sub-rule (1) of Rule 14 shall then be arranged in such manner that the candidate shall be arranged in accordance with the quality points and weightage as specified in the Appendix I:

Provided that if two or more candidates obtain equal marks, the candidate senior in age shall be placed higher.

Provided that a person working as Shiksha Mitra in Junior Basic Schools run by Basic Shiksha Parishad shall be given weightage in the recruitment of Assistant Teacher, only in two consecutive Assistant Teacher recruitment conducted by the Government after July 25, 2017.

Thereafter, cadre wise district will be allotted to the candidates as per their quality points and options by the Secretary, Uttar Pradesh Basic Education Board, Prayagraj and list will be sent to the appointing authority.

(4)

No person shall be eligible for appointment unless his or her name is included in the list prepared under sub-rule (3).

(5)

The list prepared under sub-rule (2) and received in accordance with sub-rule (3) of Rule 14 from the Secretary, Uttar

Pradesh Basic Education Board, Prayagraj, shall be forwarded by the appointing authority to the Selection Committee.]

15.

Notification of vacancies and preparation of list of eligible candidates for certain posts of Assistant Masters/Mistresses of Senior Basic Schools.

(1)

In respect of an appointment by direct recruitment to the post of Assistant Master or Assistant Mistress of Senior Basic School under the proviso to Rule 5(b) the appointing authority shall notify every vacancy to the Employment Exchange and also in at least one newspaper having adequate circulation in the locality.

(2)

[The appointing authority shall scrutinise the applications received in pursuance of the advertisement and the names of candidates received from the Employment Exchange in pursuance of the vacancy notified under sub-rule (1) and shall thereafter, prepare a list of such persons as appear to possess the prescribed educational qualifications and be eligible for appointment. The order in which name of eligible persons shall appear in the list shall be as prescribed under sub-rule (4) of Rule 14.]

[Substituted by Notification No. 5866/XV(5)-81-UPA-34-1972-400(50)-79, dated 17.7.1981.]

(3)

The list prepared under sub-rule (2) shall be forwarded by the appointing authority of the Selection Committee constituted under Rule 16.

16.

[Constitution of District Selection Committee.

[Substituted by Notification No. C.M. 10/ 68-5-2019-Writ-105-2014, dated 24.1.2019.]

- For appointment to any post under these rules there shall be constituted a Selection Committee for verification of academic records etc. and determining the eligibility for appointment of candidates of the list obtained from the Secretary, Uttar Pradesh Basic Education Board, Prayagraj, comprising -

(a)

Principal, District Institute of Education and Training - Chairman

(b)

District Basic Education Officer - Secretary

(c)

Senior-most Principal of Government Intermediate College or Government Girls Intermediate College at the District Headquarters - Member

(d)

One Magistrate/Class II Officer nominated by District Magistrate - Member

Note. - If the Selection Committee constituted in the aforesaid manner does not include persons belonging to the Scheduled Castes/Scheduled Tribes or Other Backward Classes then the persons belonging to such Castes, Tribes or Classes as are not represented in the Selection Committee shall be nominated by the District Magistrate from amongst District Level Officers as member of the Selection Committee.]

17.

[Procedure for direct recruitment.

[Substituted by Notification No. C.M. 10/ 68-5-2019-Writ-105-2014, dated 24.1.2019.]

- The Selection Committee shall verify the academic records and eligibility of candidates on the basis of the list referred to in clause (a) of sub-rule (3) of Rule 14 or sub-rule (2) of Rule 15. After verification and determining the eligibility of candidates the Selection Committee shall forward the name of the candidates to the appointing authority.]

17A.

[Procedure for direct recruitment to a post for teaching subjects other than language.

[Substituted by Notification No. 2729/XV-5-97/127/97, dated 6.8.1997, published in the U.P. Gazette, dated 12.1.1998.]

(1)

The Selection Committee shall consider the candidates for selection on the basis of the list referred to in sub-rule (6) of Rule 14 or sub-rule (2) of Rule 15, as the case may be, and prepare a list of selected candidates in the order in which their names appear in the said list. If two or more candidates have equal quality points, the name of the candidate who is senior in age shall be placed higher in the list. The selection committee shall forward the list to the appointing authority.

(2)

The list prepared under sub-rule (1) shall remain valid for one year from the date of its preparation.

(3)

Where the number of selected candidates is more than the number of vacancies and all the selected candidates do not get appointments under sub-rule (1) of Rule 19, the District Basic Education Officer shall forward the list of such selected candidates as have not been able to get appointment due to non-availability of vacancies, along with their applications and other particulars, to the Regional Assistant Director of Education (Basic), for the purposes of utilising the list in a district within his region where sufficient number of selected candidates are not available to fill the vacancies in such district.

(4)

On receiving the list referred in sub-rule (3), the Regional assistant director of Education (Basic), shall forward the list alongwith the applications and other particulars of the selected candidates, to a District Basic Education Officer within his region, where sufficient number of candidates are not available to fill the vacancies. In so forwarding the list, the Regional Assistant Director of Education (Basic) shall take into account the options given by selected candidates in regard to his posting in districts.

(5)

On receiving the list referred to in sub-rule (4), the District Basic Education Officer shall place the list alongwith applications and other particulars of the candidates, before the Selection Committee constituted under Rule 16.

(6)

The selection committee shall consider the candidates mentioned in the list referred to in sub-rule (4) and prepare a list of selected candidates in accordance with sub-rule (1) and include their names at the bottom in the list prepared under sub-rule (1) and forward the entire list to the appointing authority.

(7)

Where the list forwarded to the Regional Assistant Director of Education (Basic) under sub-rule (3) cannot be utilised in his region due to nonavailability of vacancies, the Regional Assistant Director of Education (Basic) shall forward the list of the Secretary of the Board who shall thereafter forward the list to a District Basic Education Officer in whose district sufficient number of candidates are not available to fill the vacancies. In so forwarding the list, the Secretary of the Board shall take into account the options given by selected candidates in regard to their postings in districts.

(8)

On receiving the list referred to in sub-rule (7), the District Basic Education Officer shall place the list alongwith applications and other particulars of the candidates, before the selection committee constituted under Rule 16.

(9)

The Selection Committee shall consider the candidates mentioned in the list referred to in sub-rule (7), and prepare a list of selected candidates in accordance with sub-rule (1) and include their names at the bottom in the list prepared under sub-rule (1) and forward the entire list to the appointing authority.]

Part V ? Procedure For Recruitment By Promotion

18.

[Procedure for recruitment by promotion.

[Substituted by Notification No. 1962/XV-5-93-73-93, dated 28.6.1993, published in the U.P. Gazette, dated 21.8.1993.]

(1)

Recruitment by promotion to the posts referred to in clause (b) of Rule 5 shall be made on the basis of seniority subject to rejection of unfit through the Selection Committee constituted under Rule 16.

(2)

The appointing authority shall prepare an eligibility list of candidates in order of seniority and place it before the Selection Committee alongwith their character rolls and such other records pertaining to them as may be considered proper.

(3)

The Selection Committee shall consider the cases of the candidates on the basis of the records referred to in sub-rule (2).

(4)

The Selection Committee shall prepare a list of selected candidates in order of seniority as disclosed from the eligibility

list referred to in sub-rule (2) and forward the same to the appointing authority.]

Part VI ? Other Provisions

19.

[Substantive Appointment.

[Substituted by Notification No. C.M. 10/ 68-5-2019-Writ-105-2014, dated 24.1.2019.]

- The appointing authority shall make appointment to any post referred to in Rule 5 by taking the names of the candidates in the order in which they stand in the list prepared under Rule 17 or 18, as the case may be. The character verification will be done by every appointed candidates compulsorily.]

20.

Appointment to be made by order.

- All appointments made under these rules shall be made by means of written orders.

21.

[Procedure for transfer -

[Substituted by Notification No. 2729/XV-5-97/127/97, dated 6.8.1997, published in the U.P. Gazette, dated 12.1.1998.]

There shall be no transfer of any teacher from the rural local area to an urban local area or vice versa or from one urban local area to another of the same district or from local area of one district to that of another district except on the request of or with the consent of the teacher himself and in either case approval of the Board shall be necessary.]

22.

[Seniority.

[Substituted by Notification No. 4585/XV-5-94-208-94, dated 13.9.1994, published in the U.P. Gazette, dated 31.12.1994.]

(1)

The seniority of a teacher in a cadre shall be determined by the date of his appointment in a substantive capacity :

Provided that, if two or more persons are appointed on the same date their seniority shall be determined in which their names appear in the list referred to in Rule 17 or 17-A or 18, as the case may be.

Note. - A candidate selected by direct recruitment may lose his seniority, if he fails to join without valid reasons when a vacancy is offered to him whether the reasons in any particular case are valid or not shall be decided by the appointing authority.]

(2)

The seniority of a teacher who has been transferred from one local area to another in accordance with the provisions of Rule 21 shall be placed at the bottom of the list of teachers of the corresponding class or category pertaining to the local area to which he has been transferred, as on the date of orders for transfer are passed, such a persons shall not be entitled to any compensation.

23.

Probation.

(1)

All persons on appointment in a substantive vacancy shall be placed on probation for a period of one year.

(2)

The appointing authority may allow continuous service, rendered in an officiating or temporary capacity on a post included in the cadre of the service or on any other higher post under the Board to be taken into account for the purpose of computing the period of probation.

(3)

The appointing authority may for reasons to be recorded, extend the period of probation in individual cases specifying the exact date up to which the extension is granted. Such extension shall not ordinarily exceed two years.

(4)

If it appears to the appointing authority at any time during or at the end of the period of probation, as the case may be, that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post, if any, or if he does not hold a lien on any post, his services may be dispensed with.

(5)

A person who is reverted or whose services are dispensed with under sub-rule (4) shall not be entitled to any compensation.

24.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation or extended period of probation, as the case may be, if he is considered fit for confirmation and his integrity is certified.

25.

Scales of pay.

- The scales of pay admissible to persons appointed to any post under these rules whether in a substantive or officiating capacity or as temporary measure, shall be such as may be determined by the Government from time to time.

26.

Pay during probation.

- A person on probation shall draw during the period of probation increments on the condition that his work and conduct are reported to be satisfactory :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment, unless the appointing authority directs otherwise.

27.

Criterion for crossing efficiency bar.

- No teacher shall be allowed to cross -

(a)

the first efficiency bar unless he is found to have worked steadily to the best of his ability and his integrity is certified; and

(b)

the second efficiency bar, unless he has a consistently good record of service and his integrity is certified.

28.

Canvassing.

- No recommendation, either written or oral, other than those required under these rules shall be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature shall disqualify him for appointment.

29.

Age of superannuation.

- Every teacher shall retire from service in the afternoon of the last day of the month in which he attains the age of 60 years :

Provided that a teacher who retires during an academic session (July 1 to June 30) shall continue to work till the end of the academic session, that is, June 30 and such period of service will be deemed as extended period of employment.

[Appendix]

[Inserted by Notification No. 1962/XV-5-93-73-93, dated 28.6.1993, published in the U.P. Gazette, dated 28.8.1993.]

[See Rule 14(4)]

Quality points for selection of candidates

Name of Examination/Degree

Quality points

1.

High School

{|

Percentage of marks10

|-

| 2.

| Intermediate

| {|

|-

| Percentage of marks X 210

|}

|-

| 3.

```

| Graduation degree
| {
| -
| Percentage of marks X 410
| }
| -
| 4.
| Training
| First Division
| Second Division
| Third Division
| -
|
| (a) Theory
| 12
| 6
| 3
| -
|
| (b) Practical
| 12
| 6
| 3
| }

```

Note. - The quality points shall be awarded only up to the level of examination or degree required for admission to the training course in the year in which the candidate has passed the training course.

2. If two or more candidates have equal quality points, the name of the candidate who is senior in age shall be placed higher in the list. If two or more candidates have equal quality points and age. the name of the candidate shall he placed in list in English alphabetical order.

[Appendix-II]

[Appendix Inserted (Sixteenth Amendment) Notification No. 3338/LXXIX-5-2012-14(10)-2010, dated 4.12.2012. (w.e.f. 4.12.2012)]

[See Rule 14(3)(b)]

Quality points for selection of candidates

Name of Examination/Degree

Quality Points

High School

Percentage of Marks/10

Intermediate

Percentage of Marks x 2/10

Graduation Degree

Percentage of Marks x 4/10

Bachelor of Education (B.Ed.)/B.Ed.(Special Education)/D.Ed. (Special Education)

Percentage of Marks x 3/10

Note. - If two or more candidates have equal quality points, the name of the candidate who is senior in age shall be placed higher in the list. If two or more candidates have equal quality points and age, the name of the candidate shall be placed in the list in English alphabetical order.

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